CHAPTER 17

Attempts

Inchoate Crimes I

Criminal Law

Try not.

The law of trying and failing

Roadmap

I
The Proximity Test
Peaslee, Rizzo

II
The MPC's Bargain
Substantial step + abandonment

III
What the MPC Enabled
Stings

IV
System Design
Who attempt catches, who it misses

PART I

The Proximity Test

How close is close enough?

Attempt Requirements

	Attempt	Predicate Crime
Mens Rea	Purpose as to the result	Whatever the target crime requires for non-result elements
Actus Reus	Proximity test — *"dangerously near"*	Not required — that's the whole point

The attempt supplies its own actus reus. But the mens rea must cover both the attempt and the predicate.

Peaslee and *Rizzo*

	Peaslee	Rizzo
Plan	Arson — combustibles arranged, ready to light	Armed robbery — four defendants, two guns
What happened	Drove toward building; turned around a quarter mile out	Drove around city hunting for payroll clerk; never found him
Result	Probably guilty	Acquitted — not close enough

Who is more dangerous?

Who would you punish?

Two Considerations

DANGER

Who is more dangerous, Peaslee or Rizzo?

ABANDONMENT

Who should get credit for quitting?

The Core Problem

The proximity test pushes the line late

Once crossed, abandonment provides no defense

PART II

The MPC's Bargain

Earlier liability, real incentives to quit

The Fix

Move the line earlier — substantial step strongly corroborative of criminal purpose

Make abandonment a defense — complete and voluntary renunciation

Common Law vs. MPC

	Common Law	MPC
Mens Rea	Purpose (specific intent)	Same
Actus Reus	Dangerous proximity	Substantial step
Abandonment	Not a defense	Defense if voluntary
Punishment	Usually half the offense	Equal to full offense

How do Peaslee and Rizzo
come out under the MPC?

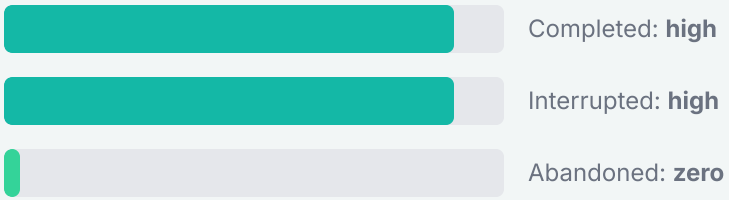
Incentive Structures

COMMON LAW

"Medium, zero, medium"

MPC

"High, high, zero"



Which creates a stronger incentive to quit?

Roske vs. Routh

	Roske (2022)	Routh (2024)
Target	Justice Kavanaugh	Former President Trump
Weapon	Pistol, knife, zip ties	Loaded rifle with scope
Fired?	No	No
What happened	Called 911	Fled; caught by police
Sentence	97 months	Life

Why such different outcomes?

Utility: Does the gap create the right incentives to stand down?

Fairness: Does voluntary surrender deserve a dramatically different result?

Social meaning: What message does each sentence send?

Impossibility

Lady Eldon smuggles what she believes is illegal French lace

VERSION A

Parliament removed it from the prohibited list

Legal impossibility

VERSION B

The merchant cheated her — it's English lace

Factual impossibility

Traditional rule: legal impossibility is a defense; factual is not

MPC: factual impossibility is irrelevant — if the facts were as she believed, it's attempt

But Version A? The crime doesn't exist. No predicate offense, no attempt. Pure legal impossibility survives even under the MPC — you can't attempt to violate a statute that isn't there.

Where Do States Actually Fall?

Most states adopted a hybrid — not purely common law or MPC.

Element	Majority Rule	Minority Rule
Actus reus	Substantial step (~30–34 states + all federal circuits)	Dangerous proximity (~8–15 states)
Abandonment	*Roughly evenly split*	
Grading	Reduced — one grade down or half max (~28–35 states)	Same as completed offense (~9–13 states)
Impossibility	Abolished — following MPC (sizable majority)	Legal impossibility still a defense (shrinking minority)

The typical state took the MPC's actus reus and impossibility rules but kept common law grading. Only NJ, PA, HI, and DE adopted the full MPC package.

PART III

What the MPC Enabled

Sting operations and manufactured crime

STINGS

The Whitmer Kidnapping Plot

Fox, Croft, and others planned to kidnap Governor Whitmer

Surveillance trips, IEDs, 13,000+ pages of encrypted communications

12 confidential informants and 2 undercover agents

~1:1 ratio of government agents to defendants
Lead informant became the group's second-in-command

Five of fourteen defendants were acquitted.

Fox vs. Harris

	Adam Fox	Daniel Harris
Surveillance trips?	Yes — drew maps, kept kidnapping kit	No — said he joined to "drink beer, shoot guns, and talk about girls"
Verdict	Guilty — 16 years	Acquitted

Same conspiracy, same informants. Why such different outcomes?

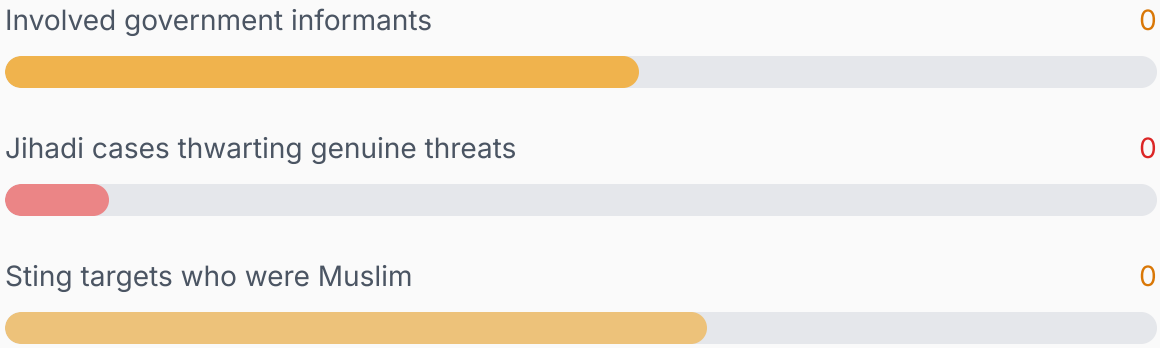
Utility: Does prosecuting peripheral members deter — or just sweep up bystanders?

Fairness: How do you assess individual culpability inside a government-orchestrated plot?

Social meaning: What does charging everyone equally say about the state's view of culpability? What do the jury's split verdicts say back?

The Data on Stings

580 federal terrorism cases (Norris & Grol-Prokopczyk, 2015)



If only 9% thwarted genuinely threatening plots, what justifies the other 91%?

PART IV

System Design

Who attempt catches, who it misses

The Specific Intent Gap

CATCHES

Sigfredo Garcia

Drove to Tallahassee to shoot Dan Markel

MISSES

John Kapoor (Insys)

Bribed doctors to prescribe fentanyl; people died. Purpose was profit. Got 66 months.

Attempt requires purpose as to the result. What does that do to the distribution of criminal liability?

SYSTEM DESIGN

The Resource Question

You're a prosecutor with limited resources:

1. Sting operations
   Resource-intensive, manufactured crime risk

2. Corporate investigations
   Complex, slow, high systemic impact

3. Focused deterrence
   Direct warnings, outreach, social services

> The evidence: certainty of apprehension matters more than severity of punishment. Focused deterrence has the strongest track record. But it doesn't produce attempt prosecutions.

How do you allocate?